

Devi Das Ram Das Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 35396 of 2013 · **Writ dismissed following even-date order in connected batch.**

HEADNOTE

A writ challenging demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, with reasons to be read from the even-date order in Writ-C No. 30898 of 2016. An earlier Division Bench had tagged the petition with Vehina Steels (WP 30582 of 2009) and restrained the respondents from demanding additional security until further orders.

FACTUAL SUMMARY

Devi Das Ram Das Cold Storage and four others challenged a demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The petition was tagged with Writ Petition No. 30582 of 2009 (Vehina Steels & Alloys v. PVVNL) and similar pending matters on the same issue. On 4 July 2013 the Court, following the interim order in that connected writ, restrained the respondents from demanding additional security until further orders. On 21 March 2017 a later Division Bench dismissed the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging a demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed; reasons are those in the even-date order in Writ-C No. 30898 of 2016. Until that dismissal, following the interim order in connected WP 30582 of 2009, the respondents had been restrained from demanding additional security.

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